

# STATE OF NEW YORK

7633--A

Cal. No. 192

2025-2026 Regular Sessions

## IN ASSEMBLY

April 2, 2025

Introduced by M. of A. BARRETT, SANTABARBARA, LUCAS, COLTON, ZINERMAN, KELLES -- read once and referred to the Committee on Energy -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public service law, in relation to electric vehicle charging station fee transparency

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section  
2 66-x to read as follows:

3 § 66-x. Electric vehicle charging station fee transparency. 1. "Elec-  
4 tric vehicle charging station" shall have the same meaning as in subdi-  
5 vision one of section three hundred thirty-nine-ll of the real property  
6 law.

7 2. The department is hereby authorized and directed to, no later than  
8 June first, two thousand twenty-seven, promulgate rules and regulations  
9 for any electric vehicle charging station for which payment is required:

10 (a) establishing fee transparency standards for electric vehicle  
11 charging stations, provided such standards shall:

12 (i) require electric vehicle charging stations to clearly post and  
13 update the total price for the use of the electric vehicle charging  
14 station at the point of sale;

15 (ii) prohibit electric vehicle charging stations from requiring users  
16 to pay a subscription fee in order to use such station; provided, howev-  
17 er, that owners and operators of public electric vehicle charging  
18 stations may have separate price schedules conditional on a subscription  
19 or membership; and

20 (iii) prohibit requiring payment via mobile device as the only  
21 accepted form of payment; and

22 (b) defining "significant upgrade", which shall be the basis for  
23 determining what changes to electric vehicle charging stations

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD10552-03-6

1 constructed prior to January first, two thousand twenty-eight, including  
2 but not limited to, increasing the capacity of the electric vehicle  
3 charging station or substantially updating the electric vehicle charging  
4 station's user interface or payment system, would trigger compliance  
5 with the provisions of this section; and

6 (c) defining "subscription fee" as a recurring payment made to a  
7 service or product over a set period, such as a month or a year.

8 3. Standards established pursuant to subdivision two of this section  
9 shall apply to publicly available electric vehicle charging stations  
10 that have received a rebate, grant, tax benefit or other direct funding  
11 from the state, or that have received funds through a commission  
12 approved charge on ratepayers, including funds for the purpose of  
13 preparing necessary electrical infrastructure for any such electric  
14 vehicle charging station.

15 § 2. This act shall take effect immediately and any regulations  
16 adopted pursuant to this act shall apply to electric vehicle charging  
17 stations constructed, or significant upgrades made thereto, after Janu-  
18 ary 1, 2028.